

**CV-25-002065 NWP INDUSTRIES LP vs SCHAAF, EARL JOHN VANDER -
Plaintiff NWP Industries, L.P.'s Motion to Deem Facts Admitted and
Imposing Sanctions in the Amount of \$2,701.95 – DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court does not have authority to grant the request given that a response was provided. Even assuming the responses are deficient – which they appear to be – deeming facts admitted is outside the scope of the court's power. (See, for instance, *Katayama v. Continental Investment Group* (2024) 105 Cal.App.5th 898.) NWP cites to no authority which supports an alternative reading, probably because none exists.

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